

HBM Terms of Use

Last updated: March 26, 2025

Welcome to our website and web-based platform, designed to foster real human connection through video conversations (“**Platform**”). By accessing or using the Platform, you agree to these Terms of Use (the “**Terms**”). These Terms form a binding agreement between you and The Human Being Movement Ltd. (“**HBM**”, “**we**”, “**us**”, or “**our**”). If you do not agree with any part of these Terms, please do not use the Platform.

Please also review our [Privacy Policy](#) and [Community Rules](#), which are both an integral part of these Terms.

1. Eligibility and Accounts

- 1.1. **Eligibility:** You must be at least 16 years old to use the Platform. If you are between 16 and 18, you must have approval from a parent or legal guardian. By signing up, you confirm that you meet this requirement. If you are a parent or guardian, you are responsible for reviewing and agreeing to these Terms and our Privacy Policy on behalf of your child. Your child’s use of the Platform is considered confirmation that you have done so.
- 1.2. **Account Registration:** Most activities and features of the Platform require you to create an account. When registering, you agree to provide accurate, current, and complete information about yourself. You are responsible for maintaining the confidentiality of your account login credentials and for all activities that occur under your account. If you believe someone has accessed your account without permission, please notify us at office@thehbm.org immediately.
- 1.3. **Use on Behalf of an Organization:** If you are using the Platform on behalf of a company or other organization (for example, your employer has invited you to use Platform), you represent that you have the authority to bind that organization to these Terms. In that case, the terms “you” and “your” include both you as an individual and the organization. The organization (or corporate partner) must ensure that all its authorized users (e.g. admins, employees or members) comply with these Terms, including section Q below.

2. User Responsibilities and Conduct

We strive to maintain a safe and positive community on the Platform. By using the Platform, you agree to behave responsibly and respectfully during your use at the Platform, and specifically, during video calls and in any other interaction on Platform. You are fully responsible for your conduct on the platform. This includes all content you share, comment, say or display during or in relation to video chats or in text interactions. Be kind and respectful during conversations. In particular, you agree NOT to:

- 2.1. **Harass, threaten, or abuse others:** This includes any form of hate speech, bullying, stalking, discrimination, or encouragement of self-harm or violence.
- 2.2. **Engage in illegal or objectionable behavior:** Do not use the Platform for any unlawful purpose or to promote any illegal activity. You also may not share content that is obscene, pornographic (no sexually **explicit** behavior, especially with minors, which is strictly prohibited), or otherwise objectionable.
- 2.3. **Impersonate or misrepresent:** Do not impersonate any person or entity, or misrepresent your identity or affiliation.

- 2.4. **Disrupt or spam:** Do not disrupt conversations or the platform's operation. This includes unsolicited advertising, promotions, or any form of spam. Do not attempt to manipulate the timing mechanism of calls or circumvent any restrictions.
- 2.5. **Infringe on rights:** Do not share content that you do not have the right to share. This means no unauthorized sharing of copyrighted material or others' personal information.
- 2.6. **Record or misuse content without permission:** Do not record, screenshot, or distribute video calls or any content from the Platform without consent from all participants.

The behaviors listed above are strictly prohibited. We reserve the right to take action against users who violate these rules, including warning, suspending, or permanently terminating accounts, limiting access to certain features, or reporting misconduct to relevant authorities when necessary.

You agree to follow any additional [Community Guidelines](#) or rules we provide within the Platform. These guidelines further detail acceptable behavior and may be updated from time to time. Your continued use of the Platform means you agree to any updated guidelines.

User Safety: You are encouraged to use common sense and caution when interacting with others on the Platform. While we hope you form positive connections, remember that we do not conduct criminal or other background checks or verify information of users. **Do not share sensitive personal information** (like home address, financial information, etc.) with people you just met on Platform. If another user asks you for such information or otherwise makes you uncomfortable, you have the right to refuse and end the conversation.

We take misuse seriously. Please report any concerns, violations, or suspicious behavior to us so we take appropriate action.

3. No Professional Advice; No Therapeutic Use

The Platform is meant for connection and conversation. Neither HBM nor the users on the Platform are professional advisors, medical providers, or therapists (unless explicitly stated in a specific context). All discussions on the Platform are for general, personal, and informational purposes only. You should not treat any conversation on HBM as professional advice (medical, legal, financial, therapeutic, or otherwise).

If you need professional help or advice, you should seek that from a qualified professional outside of the Platform. For example, if you are experiencing a mental health crisis or medical emergency, do not rely on HBM or the Platform. Instead, contact a licensed professional or emergency services immediately.

THE PLATFORM IS NOT INTENDED TO PROVIDE THERAPY, COUNSELING, MEDICAL CARE, OR PROFESSIONAL ADVICE OF ANY KIND. WE EXPLICITLY DISCLAIM ANY AND ALL RESPONSIBILITY OR LIABILITY FOR THE USE OF THE PLATFORM IN SUCH CONTEXTS OR FOR ANY OUTCOMES RELATED TO EMOTIONAL, PSYCHOLOGICAL, OR PHYSICAL WELL-BEING.

4. Corporate Partners and Administrators

Some users may access the Platform through a company, community, or other organization that offers HBM to its employees or members. In such cases, we may have specific agreements in place with the organization. If you are one of our corporate partners or administrators representing such an

organization, these Terms apply to you as well, and you are responsible for ensuring proper use of the Platform within your group. In specific, the following shall apply to you:

- 4.1. **Administrator Responsibilities:** As an admin managing an organization's HBM account or invitations, you are responsible for ensuring that your participants or employees are aware of and adhere to these Terms. You should manage access responsibly and promptly address any misuse by users in your organization.
- 4.2. **Compliance and Data:** Corporate partners must comply with all applicable laws when using the Platform (including privacy laws if you provide us with personal data about your employees or members). We handle user data as described in our [Privacy Policy](#).
- 4.3. **Separate Agreements:** In some cases, a separate agreement or subscription contract between HBM and the organization may apply. These Terms will still apply to the extent they are not overridden by any signed corporate agreement. If there is a conflict, the specific provisions of your separate written contract with HBM will take precedence for that organization.

Corporate users and admins are otherwise treated as end users under these Terms, with the necessary adaptations. Regardless of how you access the Platform, all users must follow the same standards of conduct and mutual respect on the Platform and in relation to using it.

5. Subscriptions and Service Changes

- 5.1. HBM may offer different types of accounts or subscription plans. For example, individual users might have free or paid plans, and commercial or corporate partners might have enterprise plans with additional features or admin tools. The specific features and pricing of your plan will be communicated to you (for instance, on our website or in a separate offer).
- 5.2. Features may vary based on your subscription type and certain features might only be available to paid subscribers or corporate accounts.
- 5.3. We reserve the right to change or adjust our subscription offerings, fees, and features over time.
- 5.4. During this early development stage, new features may be added and some may be modified or removed more often, as we learn what works best. If we make a significant change to a paid subscription plan or its pricing, we will strive to notify affected users in advance (for example, by email or in-app notification).

6. Intellectual Property Rights

- 6.1. All rights, title, and interest in our Platform (including website) and its services are owned by us or our licensors. This includes the software, the design, the HBM name and logo, and all content provided by HBM (such as text or graphics on the website). These are protected by copyright, trademark, and other intellectual property laws. You are granted a limited, revocable license to use HBM for its intended purpose (e.g., connecting via video calls), but you do not gain any ownership rights in our intellectual property by using the service. You must not copy, distribute, modify, or create derivative works from our platform or content without our permission.
- 6.2. **User Content:** In the course of using the Platform, you and other users may provide or share content – for example, profile information, or anything you write or say during a video conversation. By using the Platform and sharing content, you grant us a limited license to use that content as necessary to operate, improve, and maintain the Platform, and as otherwise described in our [Privacy Policy](#).
- 6.3. In some cases, if you agree, we may use your content – including video recordings – for promotional or community-related purposes.

- 6.4. You are responsible for content you provide. Do not upload or share content unless you have the right to do so. By sharing anything on the Platform, you promise that it does not violate anyone else's rights (including privacy rights, copyrights, or other intellectual property rights).
- 6.5. **Feedback:** If you provide us with feedback or suggestions, we may use it without obligation to you. Any suggestions you submit can be used to improve our platform, and we do not have to compensate you for them.

7. Suspension and Termination of Use

- 7.1. HBM reserves the right to suspend or terminate your access to the Platform at any time, especially if we believe you have violated these Terms, the law, or any applicable Community Guidelines. We may do this with or without prior notice. For example, we may suspend or ban users who harass others, engage in illegal behavior, misuse the Platform, or otherwise behave in a manner that we determine to be harmful, inappropriate or disrespectful.
- 7.2. If your account is suspended or terminated, you may lose access to any content associated with your account, and you might not be allowed to create a new account. Serious violations (such as illegal conduct) may be reported to law enforcement or other appropriate authorities.
- 7.3. You are free to stop using the Platform at any time and may delete your account if you wish to discontinue using it.

8. Disclaimer of Warranties

- 8.1. The Platform is provided "as is" and "as available." While we are excited about the Platform and hope you enjoy it, we cannot guarantee that the Platform will be perfect or meet your expectations. In fact, as an early-stage service, there may more errors, delays, and changes than usual.
- 8.2. Your use of the Platform is at your own consideration, and, To the fullest extent permitted by law, we disclaim all warranties and representations, express or implied, regarding the Platform. This includes any warranties of merchantability, fitness for a particular purpose, and non-infringement. We do not warrant that the service will be uninterrupted, secure, or free of bugs or viruses. We do not guarantee that you will achieve any particular result from using the Platform (for example, we can't guarantee you will form a particular kind of connection or improve your wellbeing).
- 8.3. No advice or information (oral or written) obtained from through the Platform or its users will create any warranty not expressly made in these Terms. We provide a platform for conversations, but we make no promises that it will meet your specific needs or expectations.

9. Limitation of Liability

IN NO EVENT WILL HBM OR ITS TEAM BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATING TO YOUR USE OF (OR INABILITY TO USE) THE PLATFORM. THIS INCLUDES, FOR EXAMPLE, DAMAGES FOR LOST PROFITS, LOSS OF DATA, PERSONAL INJURIES, EMOTIONAL DISTRESS, OR ANY OTHER HARM, EVEN IF WE WERE ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE EXTENT PERMITTED BY LAW, WE ARE NOT LIABLE FOR THE CONDUCT OF ANY USER ON THE PLATFORM, WHETHER ONLINE OR OFFLINE. THIS MEANS THAT IF ANOTHER USER BEHAVES INAPPROPRIATELY OR UNLAWFULLY, HBM IS NOT RESPONSIBLE FOR THEIR ACTIONS.

TO THE EXTENT OUR LIABILITY CANNOT BE FULLY EXCLUDED BY LAW, IT WILL BE LIMITED TO THE GREATER OF (I) THE AMOUNT YOU PAID FOR USING THE PLATFORM IN THE PAST SIX (6) MONTHS, OR (II) TWENTY U.S. DOLLARS (US\$20).

10. User Reporting and Moderation

We aim to make the Platform a safe and welcoming environment. If you experience or witness any behavior that violates these Terms—such as harassment, hate speech, nudity, sexual intentions, or any illegal or disturbing activity—please report it to us. The Platform may include in-app tools to report users or flag inappropriate behavior. You can also contact us directly at office@thehbm.org to report any concerns.

11. Changes to These Terms

These Terms may change over time and we reserve the right to update them at any time. We will update the “Last Updated” date at the top and may also provide notice through the Platform or by email if the changes are significant. By continuing to use Platform after updates are posted, you agree to the revised Terms. If you don’t agree, you should stop using the Platform.

12. General Provisions

No Waiver: If we do not enforce a provision of these Terms, that does not mean we waive our right to do so later. Any waiver of these Terms must be in writing and signed by an authorized representative of HBM.

Severability: If any part of these Terms is found to be invalid or unenforceable by a court or competent authority, the rest of the Terms will remain in effect. We will replace any invalid term with a new provision that achieves the original intent as much as possible.

Governing Law: These Terms are governed by the laws of Israel. By using the Platform, you agree that any disputes arising in relation to the platform or these Terms will be subject to the jurisdiction of the courts of Tel Aviv, Israel.